

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE ENROLLED ACT No. 1031

AN ACT to amend the Indiana Code concerning local government.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 4-23-6.5-10, AS AMENDED BY P.L.3-2008, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. The board shall consult with the Indiana law enforcement academy under IC 36-2-14-22.3 concerning criminal investigations in the creation of:

- (1) the training course for coroners and deputy coroners under IC 36-2-14-22.3(a); and
- (2) the annual training course for coroners and deputy coroners under ~~IC 36-2-14-22.3(b)~~; **IC 36-2-14-22.3(c)**.

SECTION 2. IC 35-52-36-13.3 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 13.3. IC 36-2-14-23 defines a crime concerning coroners and deputy coroners.**

SECTION 3. IC 36-2-14-6, AS AMENDED BY P.L.186-2025, SECTION 254, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) Whenever the coroner is notified that a person in the county:

- (1) has died from violence;
- (2) has died by casualty;
- (3) has died when apparently in good health;
- (4) has died in an apparently suspicious, unusual, or unnatural manner; or

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(5) has been found dead;
 the coroner shall, before the scene of the death is disturbed, notify a law enforcement agency having jurisdiction in that area. ~~The agency shall assist the coroner in determining the cause, manner, and mechanism of death. The coroner shall hold the human remains until the investigation of how the person died and the medical investigation of the cause of death are concluded.~~

(b) The law enforcement agency having jurisdiction shall, in cooperation with the coroner, secure, control, and process the scene of the death. The agency shall conduct the criminal investigation into the death, including but not limited to evidence collection, witness interviews, suspect identification, and case preparation.

(c) The coroner has exclusive custody of the body and any property on the body not secured as evidence. The coroner shall coordinate the examination and removal of the body with the law enforcement agency to ensure preservation of evidence and the integrity of the scene.

(d) The coroner and the law enforcement agency shall cooperate fully, share information, and conduct their respective duties as part of a single coordinated death investigation.

~~(b)~~ **(e)** If the coroner reasonably suspects the cause of the person's death to be accidental or intentional overdose of a controlled substance (as defined by IC 35-48-1.1-7), the coroner shall do the following:

(1) Obtain any relevant information about the decedent maintained by the INSPECT program established by IC 25-1-13-4.

(2) Extract one (1) or more of the following bodily fluids from the decedent:

(A) Blood.

(B) Vitreous.

(C) Urine.

(3) Test a bodily fluid extracted under subdivision (2) to determine whether the bodily fluid contained any amount, including a trace amount, of a controlled substance at the time of the decedent's death.

(4) If the coroner reasonably suspects the cause of the person's death to be accidental or intentional overdose of an opioid (as defined in IC 35-48-1.1-31) or if the person was administered an overdose intervention drug (as defined in IC 16-18-2-263.9) prior to death and was unresponsive to the overdose intervention drug, the coroner shall test a bodily fluid extracted under subdivision



(2) to determine whether the bodily fluid contained any amount, including a trace amount, of xylazine at the time of the decedent's death.

(5) Report the results of the test conducted under this subsection to the Indiana department of health after completing the medical investigation of the cause of the decedent's death.

(6) Provide the Indiana department of health notice of the decedent's death, including any information related to the controlled substances involved, if any.

~~(e)~~ (f) The coroner:

(1) shall file a certificate of death with the county health department, or, if applicable, a multiple county health department, of the county in which the individual died, within seventy-two (72) hours after the completion of the death investigation;

(2) shall complete the certificate of death utilizing all verifiable information establishing the time and date of death; and

(3) may file a pending investigation certificate of death before completing the certificate of death, if necessary.

~~(d)~~ (g) If this section applies, the body and the scene of death may not be disturbed until:

(1) the coroner has photographed them in the manner that most fully discloses how the person died; and

(2) law enforcement and the coroner have finished their initial assessment of the scene of death.

However, a coroner or law enforcement officer may order a body to be moved before photographs are taken if the position or location of the body unduly interferes with activities carried on where the body is found, but the body may not be moved from the immediate area and must be moved without substantially destroying or altering the evidence present.

~~(e)~~ (h) When acting under this section, if the coroner considers it necessary to have an autopsy performed, is required to perform an autopsy under subsection ~~(g)~~, (j), or is requested by the prosecuting attorney of the county to perform an autopsy, the coroner shall arrange for the autopsy to be performed by a:

(1) physician who:

(A) is certified by the American Board of Pathology; or

(B) holds a subspecialty board certification in forensic pathology from the American Osteopathic Board of Pathology and the American Osteopathic Association; or

(2) pathology resident acting under the direct supervision of a physician described in subdivision (1).



A physician employed under subdivision (1) to perform the autopsy shall be paid a fee of at least fifty dollars (\$50) from the county treasury.

~~(f)~~ (i) If:

(1) at the request of:

(A) the decedent's spouse;

(B) a child of the decedent, if the decedent does not have a spouse;

(C) a parent of the decedent, if the decedent does not have a spouse or children;

(D) a brother or sister of the decedent, if the decedent does not have a spouse, children, or parents; or

(E) a grandparent of the decedent, if the decedent does not have a spouse, children, parents, brothers, or sisters;

(2) in any death, two (2) or more witnesses who corroborate the circumstances surrounding death are present; and

(3) two (2) physicians who are licensed to practice medicine in the state and who have made separate examinations of the decedent certify the same cause of death in an affidavit within twenty-four (24) hours after death;

an autopsy need not be performed. The affidavits shall be filed with the circuit court clerk.

~~(g)~~ (j) A county coroner may not certify the cause of death in the case of the sudden and unexpected death of a child who is less than three (3) years old unless an autopsy is performed at county expense. However, a coroner may certify the cause of death of a child described in this subsection without the performance of an autopsy if subsection ~~(f)~~ (i) applies to the death of the child.

~~(h)~~ (k) After consultation with the law enforcement agency investigating the death of a decedent, the coroner shall do the following:

(1) Inform a crematory authority if a person is barred under IC 23-14-31-26(c) from serving as the authorizing agent with respect to the cremation of the decedent's body because the coroner made the determination under IC 23-14-31-26(c)(2) in connection with the death of the decedent.

(2) Inform a cemetery owner if a person is barred under IC 23-14-55-2(c) from authorizing the disposition of the body or cremated remains of the decedent because the coroner made the determination under IC 23-14-55-2(c)(2) in connection with the death of the decedent.

(3) Inform a seller of prepaid services or merchandise if a person's



contract is unenforceable under IC 30-2-13-23(b) because the coroner made the determination under IC 30-2-13-23(b)(4) in connection with the death of the decedent.

SECTION 4. IC 36-2-14-7, AS AMENDED BY P.L.127-2017, SECTION 95, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) ~~At an investigation under this chapter, the coroner shall examine persons wanting to testify and may examine persons the coroner has summoned by the coroner's subpoena. Witnesses shall answer under oath all questions concerning the death under investigation.~~

(b) ~~If a physician is required to attend an investigation and make a post mortem examination, the coroner shall certify this service to the county executive, which shall order payment for the physician from the county treasury.~~

SECTION 5. IC 36-2-14-8 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 8: ~~A witness testifying before a county coroner is entitled to the same fees as a witness testifying in the circuit court for the county.~~

SECTION 6. IC 36-2-14-9 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 9: ~~The testimony of each witness at a coroner's investigation shall be reduced to writing and signed by the witness. The coroner shall, by recognizance in a reasonable sum, bind any witness whose testimony relates to the trial of a person concerned in the death to give evidence in court and shall send the written evidence and recognizance of the witness to the court. The coroner shall commit to the county jail a witness who refuses to enter into the recognizance required by this section.~~

SECTION 7. IC 36-2-14-10, AS AMENDED BY P.L.127-2017, SECTION 97, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) ~~After viewing the body, hearing the~~ **considering all the evidence relating to the death, and making all necessary inquiries,** the coroner shall **determine the cause, manner, and mechanism of death and** draw up and sign the coroner's verdict on the death under consideration. The coroner shall also make a written report giving an accurate description of the deceased person, the deceased person's name if it can be determined, and the amount of money and other property found with the body. The verdict and the written report are subject to inspection and copying under IC 5-14-3-3.

(b) Except as provided in subsections (c), (d), and (e), a photograph, video recording, or audio recording of an autopsy in the custody of a medical examiner is declared confidential for purposes of IC 5-14-3-4(a)(1).



(c) A surviving spouse may:

- (1) view and copy a photograph or video recording; and
- (2) listen to and copy an audio recording;

of the deceased spouse's autopsy. If there is no surviving spouse, the surviving parents shall have access to the records under this section. If there is no surviving spouse or parent, an adult child shall have access to the records.

(d) Upon making a written request, a unit (as defined in IC 36-1-2-23), the state, an agency of the state, the federal government, or an agency of the federal government, while in performance of their official duty, may:

- (1) view and copy a photograph or video recording; and
- (2) listen to and copy an audio recording;

of an autopsy. Unless otherwise required in the performance of official duties, the identity of the deceased must remain confidential.

(e) The coroner or the coroner's designee having custody of a photograph, a video recording, or an audio recording of an autopsy may use or allow the use of the photograph, video recording, or audio recording of the autopsy for case consultation with a pathologist or forensic scientist. The coroner or the coroner's designee having custody of a photograph, a video recording, or an audio recording of an autopsy may also use or allow the use of the photograph, video recording, or audio recording for training or educational purposes (as defined in IC 16-39-7.1-1.5) if all information that identifies the individual on whom the autopsy was performed is masked or removed from the photograph, video recording, or audio recording. For purposes of this subsection, information that identifies an individual consists of:

- (1) the name;
- (2) the address;
- (3) the Social Security number;
- (4) a full view of the face; or
- (5) identifying marks on the body that are unrelated to the medical condition or medical status;

of the deceased individual. A coroner or coroner's designee who allows the use of autopsy information under this subsection has a duty to disclose to each person to whom the coroner or coroner's designee releases it that the information is confidential and may not be used for a purpose other than the purpose for which it was originally released. Information disclosed under this subsection is confidential. A coroner or coroner's designee who fails to disclose the confidentiality restrictions of this information commits a Class A misdemeanor.

(f) Except as provided in subsection (e), the coroner or the coroner's



designee having custody of a photograph, a video, or an audio recording of an autopsy may not permit a person to:

- (1) view or copy the photograph or video recording; and
- (2) listen to or copy the audio recording;

of an autopsy without a court order.

(g) A court, upon a showing of good cause, may issue an order authorizing a person to:

- (1) view or copy a photograph or video recording; and
- (2) listen to or copy an audio recording;

of an autopsy, and may prescribe any restrictions or stipulations that the court considers appropriate.

(h) In determining good cause under subsection (g), the court shall consider:

- (1) whether the disclosure is necessary for the public evaluation of governmental performance;
- (2) the seriousness of the intrusion into the family's right to privacy;
- (3) whether the disclosure of the photograph, video recording, or audio recording is by the least intrusive means available; and
- (4) the availability of similar information in other public records, regardless of form.

(i) In all cases, the viewing, copying, listening to, or other handling of a photograph, video recording, or audio recording of an autopsy must be under the direct supervision of the coroner, or the coroner's designee, who is the custodian of the record.

(j) A surviving spouse shall be given:

- (1) reasonable notice of the petition filed with the court to view or copy a photograph or video recording of an autopsy or a petition to listen to or copy an audio recording;
- (2) a copy of the petition filed with the court to view or copy a photograph or video recording of an autopsy or a petition to listen to or copy an audio recording; and
- (3) reasonable notice of the opportunity to be present and heard at any hearing on the matter.

(k) If there is no surviving spouse, the notice under subsection (j) must be given to the deceased's parents, and if the deceased has no living parent, the notice must be given to the adult children of the deceased.

(l) A coroner or coroner's designee who:

- (1) is the custodian of a photograph, a video recording, or an audio recording of an autopsy; and
- (2) knowingly or intentionally violates this section;



commits a Class A misdemeanor.

(m) A person who knowingly or intentionally violates a court order issued under this section commits a Class A misdemeanor.

(n) A person who:

- (1) receives autopsy information under subsection (e); and
- (2) knowingly or intentionally uses the information in a manner other than the specified purpose for which it was released;

commits a Class A misdemeanor.

SECTION 8. IC 36-2-14-19, AS AMENDED BY P.L.193-2018, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 19. (a) As used in this section, "cornea" includes corneal tissue.

(b) As used in this section, "decedent" means a person described in section 6(a)(1) through 6(a)(5) of this chapter.

(c) As used in this section, "eye bank" means a nonprofit corporation:

- (1) organized under Indiana law;
- (2) exempt from federal income taxation under Section 501 of the Internal Revenue Code; and
- (3) whose purposes include obtaining, storing, and distributing corneas that are to be used for corneal transplants or for other medical or medical research purposes.

(d) If under ~~section 6(e)~~ **section 6** of this chapter the coroner requires an autopsy to be performed upon a decedent, the coroner may authorize the removal of one (1) or both of the decedent's corneas for donation to an eye bank for transplantation, if the following conditions exist:

- (1) The decedent's corneas are not necessary for successful completion of the autopsy.
- (2) The decedent's corneas are not necessary for use as evidence.
- (3) Removal of the decedent's corneas will not alter the postmortem facial appearance of the decedent.
- (4) A representative of the eye bank, authorized by the trustees of the eye bank to make requests for corneas, has done the following:

(A) Within six (6) hours after the time of death, made a reasonable attempt to:

- (i) contact any of the persons listed in the order of priority specified in IC 29-2-16.1-8; and
- (ii) inform the person of the effect of the removal of the decedent's corneas on the physical appearance of the decedent.



- (B) Submitted to the coroner:
- (i) a written request for the donation by the coroner of corneas of the decedent subject to autopsy under ~~section 6(e)~~ **section 6** of this chapter; and
 - (ii) a written certification that corneas donated under this section are intended to be used only for cornea transplant.
- (5) The removal of the corneas and their donation to the eye bank will not alter a gift made by:
- (A) the decedent when alive; or
 - (B) any of the persons listed in the order of priority specified in IC 29-2-16.1-8;
- to an agency or organization other than the eye bank making the request for the donation.
- (6) The coroner, at the time the removal and donation of a decedent's corneas is authorized, does not know of any objection to the removal and donation of the decedent's corneas made by:
- (A) the decedent, as evidenced in a written document executed by the decedent when alive; or
 - (B) any of the persons listed in the order of priority specified in IC 29-2-16.1-8.
- (e) A person, including a coroner and an eye bank and the eye bank's representatives, who exercises reasonable care in complying with subsection (d)(6) is immune from civil liability arising from cornea removal and donation allowed under this section.
- (f) A person who authorizes the donation of a decedent's corneas may not be charged for the costs related to the donation. The recipient of the donation is responsible for the costs related to the donation.
- SECTION 9. IC 36-2-14-20, AS AMENDED BY P.L.225-2025, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 20. (a) This section applies only to the autopsy of a person whose death is:
- (1) natural;
 - (2) suspicious;
 - (3) violent;
 - (4) accidental; or
 - (5) from an overdose.
- (b) As used in this section, "autopsy" means the external and surgical internal examination of all body systems of a decedent, including toxicology and histology.
- (c) Except as provided in subsection (e) and IC 4-24-4-1, if an Indiana resident dies in an Indiana county as a result of an incident that occurred in another Indiana county, the county coroner where the death



occurred shall contact the coroner of the county where the incident occurred to discuss whether an autopsy is needed. The coroner where the incident occurred must respond to the coroner where the death occurred not more than twenty-four (24) hours after being contacted to discuss the need for an autopsy. If, after discussion, the coroners:

(1) agree that an autopsy is needed:

- (A) the coroner of the county in which the incident occurred is responsible for the cost of the autopsy, including the physician fee under ~~section 6(e)~~ **section 6** of this chapter; and
- (B) the coroner of the county where the death occurred shall bill the county in which the incident occurred for the costs in clause (A) not later than one hundred eighty (180) days after the death occurred; or

(2) disagree that an autopsy is needed, the coroner of the county that conducts the autopsy is responsible for the cost of the autopsy, including the physician fee under ~~section 6(e)~~ **section 6** of this chapter except in the instance of a criminal case that could result in criminal charges in which the county where the incident occurred is responsible for the cost of the autopsy, including the physician fee under ~~section 6(e)~~ **section 6** of this chapter.

(d) If the coroner where the incident occurred fails to respond to the coroner where the death occurred not more than twenty-four (24) hours after being contacted under subsection (c) to discuss whether an autopsy is needed:

- (1) the coroner where the death occurred may perform an autopsy, if the coroner believes that an autopsy is warranted;
- (2) the coroner of the county in which the incident occurred is responsible for the cost of the autopsy, including the physician fee under ~~section 6(e)~~ **section 6** of this chapter; and
- (3) the coroner of the county where the death occurred shall bill the county in which the incident occurred for the costs in subdivision (2) not later than one hundred eighty (180) days after the death occurred.

(e) Except as provided in subsections (c) and (d) and IC 4-24-4-1, payment for the costs of an autopsy requested by a party other than the:

- (1) prosecuting attorney; or
- (2) county coroner;

of the county in which the individual died must be made by the party requesting the autopsy.

(f) This section does not preclude the coroner of a county in which a death occurs from attempting to recover autopsy costs from the jurisdiction outside Indiana where the incident that caused the death



occurred.

SECTION 10. IC 36-2-14-22.1, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JANUARY 1, 2026 (RETROACTIVE)]: Sec. 22.1. (a) As used in this section, "hospital" refers to a hospital that is licensed under IC 16-21-2.

(b) Upon the request of a coroner who is conducting or will conduct a death investigation on an individual who is admitted or was admitted to a hospital, the hospital shall provide a sample of the individual's blood or tissue to the coroner.

(c) A hospital shall have a blood retention protocol for the preservation of the first sample of blood drawn for an individual seeking ~~treatment~~ of emergency care services at an emergency department of the hospital ~~regardless of whether the individual is ultimately admitted to the hospital~~ who is:

- (1) treated for an injury that is suspicious, violent, accidental, or from an overdose;**
- (2) determined by a provider to be critically injured or mortally wounded at the time the patient seeks emergency care services at the emergency department; and**
- (3) admitted as an inpatient to the hospital.**

The requirements set forth in this subsection may be waived in any case where a first sample of blood cannot be drawn in the best interest of the clinical care of the patient or the first sample of blood is adulterated.

(d) The protocol **under subsection (c)** shall include a plan for:

- (1) when a patient is transferred to another hospital; and
- (2) notifying the laboratory for a requisition or order for whole blood sample analysis **for the patient identified under subsection (c).** ~~to indicate when a patient is:~~

- ~~(A) treated for an injury that is suspicious, violent, accidental, or from an overdose; and~~
- ~~(B) determined by a provider to be critically injured or mortally wounded at the time the patient seeks emergency care services at the emergency department.~~

~~(d)~~ **(e)** A laboratory that receives an order for whole blood sample analysis and the notification under subsection ~~(c)~~ **(2) (d)(2)** shall do the following:

- (1) The laboratory shall hold the blood sample in storage until the earlier of the following:
 - (A) The expiration of the twenty-one (21) day period beginning on the date that the sample of the patient's blood is



drawn.

(B) The date of the patient's discharge from the hospital. For purposes of this clause, the transfer of the patient to another hospital does not constitute a discharge.

(C) The date of the patient's death.

(2) This subdivision applies if:

(A) the patient is transferred to another hospital; and

(B) at the time of the transfer, the ~~transferring hospital~~ **laboratory** is still holding the first blood sample in storage in accordance with subdivision (1)(A).

The transferring hospital laboratory shall hold the first blood sample in storage in accordance with subdivision (1)(A), unless the transferring hospital laboratory receives information from the receiving hospital that the patient has been discharged from the receiving hospital or has died.

The requirements set forth in this subsection may be waived in any case where the sample is tested and cannot be retained for reasons of medical necessity in the clinical care of the patient.

~~(e)~~ (f) A coroner does not need to obtain a warrant to request a blood or tissue sample under this section.

SECTION 11. IC 36-2-14-22.3, AS ADDED BY P.L.3-2008, SECTION 258, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 22.3. (a) The coroners training board established by IC 4-23-6.5-3, in consultation with the Indiana law enforcement academy, shall create and offer a training course for coroners and deputy coroners. **The training course must include, at a minimum, forty (40) hours of instruction. The training course must require each coroner and deputy coroner to attend, complete, and successfully pass a certification program that consists of in-person classroom lectures and instruction, as well as a supervised externship.**

(b) The training course **described in subsection (a)** must include **instruction regarding:**

~~(1)~~ at least forty ~~(40)~~ hours of instruction; and

~~(2)~~ instruction regarding:

~~(A)~~ (1) death investigation;

~~(B)~~ (2) crime scenes; and

~~(C)~~ (3) preservation of evidence at a crime scene for police and crime lab technicians.

~~(b)~~ (c) The coroners training board, in consultation with the Indiana law enforcement academy, shall create and offer an annual training course for coroners and deputy coroners. The annual training course



must **include at a minimum eight (8) hours of instruction and cover recent developments in:**

- ~~(1)~~ include at least eight (8) hours of instruction; and
- ~~(2)~~ cover recent developments in:
 - ~~(A)~~ (1) death investigation;
 - ~~(B)~~ (2) crime scenes; and
 - ~~(C)~~ (3) preservation of evidence at a crime scene for police and crime lab technicians.

~~(c)~~ **(d)** In creating the courses under **this section** ~~subsections (a) and (b)~~, the coroners training board shall consult with a pathologist certified by the American Board of Pathology regarding medical issues that are a part of the training courses.

~~(d)~~ **(e)** All training in the courses offered under **this section** ~~subsections (a) and (b)~~ that involves medical issues must be approved by a pathologist certified by the American Board of Pathology.

~~(e)~~ **(f)** All training in the courses offered under **this section** ~~subsections (a) and (b)~~ that involves crime scenes and evidence preservation must be approved by a law enforcement officer.

~~(f)~~ **(g)** The coroners training board shall issue a coroner or deputy coroner a certificate upon successful completion of the courses described in ~~subsections (a) and (b)~~: **this section**.

SECTION 12. IC 36-2-14-23, AS AMENDED BY P.L.3-2008, SECTION 260, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 23. (a) Each coroner shall successfully complete the training course offered under section 22.3(a) of this chapter within six (6) months after taking office.

(b) Each deputy coroner shall successfully complete the training course offered under section 22.3(a) of this chapter within one (1) year after beginning employment with a coroner's office.

(c) Each coroner and each deputy coroner shall successfully complete the annual training course offered under section ~~22.3(b)~~ **22.3(c)** of this chapter each year after the year in which the coroner or deputy coroner received the training required by section 22.3(a) of this chapter.

(d) After a coroner or deputy coroner has:

- (1) successfully completed the training course as required under subsection (a) or (b); and
- (2) successfully completed the annual training course as required under subsection (c);

the coroner or deputy coroner shall present a certificate or other evidence to the county executive, or in the case of a county that contains a consolidated city, the city-county council, that the coroner



or deputy coroner has successfully completed the training required under subsection (a), (b), or (c).

(e) If a coroner or deputy coroner does not present a certificate or other evidence to the county executive, or in the case of a county that contains a consolidated city, the city-county council, that the coroner or deputy coroner has successfully completed the training required under subsection (a), (b), or (c), the county executive or city-county council shall order the auditor to withhold the paycheck of the coroner or deputy coroner until the coroner or deputy coroner satisfies the respective training requirements under subsections (a), (b), and (c), unless the county executive or city-county council adopts a resolution finding that:

- (1) the failure of the coroner or deputy coroner to complete the respective training requirements under subsections (a), (b), and (c) is the result of unusual circumstances;
- (2) the coroner or deputy coroner is making reasonable progress, under the circumstances, toward completing the respective training requirements under subsections (a), (b), and (c); and
- (3) in light of the unusual circumstances described in subdivision (1), withholding the paycheck of the coroner or deputy coroner would be unjust.

(f) If the county executive or city-county council orders an auditor to withhold a paycheck under subsection (e) and a coroner or deputy coroner later presents a certificate or other evidence to the county executive or city-county council that the coroner or deputy coroner has successfully completed training required under subsection (a), (b), or (c), the county executive or city-county council shall order the auditor to release all of the coroner's or deputy coroner's paychecks that were withheld from the coroner or deputy coroner.

(g) A coroner or deputy coroner who has not successfully completed the training required under subsection (a) or (b) may not conduct a death investigation or sign a death certificate. A coroner or deputy coroner who knowingly or intentionally violates this subsection commits conducting an improper investigation, a Class B misdemeanor.

(h) If a coroner or deputy coroner begins a training course required under subsection (a) or (b) but fails to complete the course within the time required by this section, the county shall reimburse the coroners training board for the cost of the training. The county may recover from the individual the amount the county reimbursed the coroners training board under this subsection.

SECTION 13. An emergency is declared for this act.



Speaker of the House of Representatives

President of the Senate

President Pro Tempore

Governor of the State of Indiana

Date: _____ Time: _____

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